

1 **SENATE FLOOR VERSION**

2 April 14, 2025

3 ENGROSSED HOUSE  
4 BILL NO. 1126

By: Grego of the House

and

Pederson of the Senate

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9 An Act relating to public health and safety; defining  
10 terms; prohibiting the misbranding of food;  
11 prohibiting the distribution of, offer for sale, and  
12 the selling of any falsely advertised or misbranded  
13 food; providing when food is misbranded; providing  
14 when a manufactured-protein food product is falsely  
15 advertised; requiring the Department of Agriculture,  
16 Food, and Forestry to investigate all credible claims  
17 of misbranded or falsely advertised food; providing  
18 punishment for violation; providing the Department of  
19 Agriculture, Food, and Forestry certain rulemaking  
20 authority; providing for codification; and providing  
21 an effective date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified  
24 in the Oklahoma Statutes as Section 1-1150 of Title 63, unless there  
is created a duplication in numbering, reads as follows:

A. As used in this act:

1        1. "Agricultural food animal" means any domesticated animal  
2 belonging to the bovine, caprine, ovine, or porcine species, or any  
3 domesticated chicken or turkey;

4        2. "Cultivated-protein food product" means a food product  
5 having one or more sensory attributes that resemble a type of tissue  
6 originating from an agricultural food animal but that, in lieu of  
7 being derived from meat processing, is derived from manufacturing  
8 cells or nonanimal sources, including processes in which one or more  
9 stem cells are initially isolated from an agricultural food animal,  
10 are grown in vitro, and may be manipulated, as part of a  
11 manufacturing operation;

12        3. "Identifying meat term" means any word or phrase that  
13 states, indicates, suggests, or describes a meat product and  
14 includes any:

- 15            a. common name for the species of the agricultural food  
16 animal subject to slaughter and processing, including  
17 calf, chicken, cow, goat, hog, kid, lamb, pig,  
18 poultry, sheep, or turkey,
- 19            b. any characteristic of a species of the agricultural  
20 food animal subject to slaughter and processing,  
21 including beef, broiler, cabrito, chevon, fryer, lamb,  
22 mutton, pork, poulet, veal, or yearling, and
- 23            c. common name used to describe a major cut of a meat of  
24 an agricultural food animal slaughtered and processed,

1 including a major meat cut or any other common name  
2 that a reasonable purchaser would immediately and  
3 exclusively associate with a meat product prepared for  
4 sale in normal commercial channels, including bacon,  
5 bologna, bone, brat, bratwurst, brisket, burger, butt,  
6 chop, chuck, cold cut, cutlet, filet, flat iron,  
7 frank, frankfurter, ham, hamburger, hock, hot dog,  
8 jerky, liverwurst, loin, London broil, lunch meat, New  
9 York strip, pepperoni, porterhouse, rib, ribeye,  
10 roast, salami, sausage, shank, sirloin, sparerib,  
11 tenderloin, or any comparable word or phrase;

12 4. "Insect-protein food product" means a food product having  
13 one or more sensory attributes that resemble a type of tissue  
14 originating from an agricultural food animal but that, in lieu of  
15 being derived from meat processing, is derived from manufacturing  
16 insect parts;

17 5. "Manufactured-protein food product" means a cultivated  
18 protein food product, insect-protein food product, or plant-protein  
19 food product containing more than a trace amount of plant-protein  
20 food products;

21 6. "Plant-protein food product" means a food product having one  
22 or more sensory attributes that resemble a type of tissue found in a  
23 species of agricultural food animal but that, in lieu of being  
24

1 derived from meat processing, is derived from manufacturing plant  
2 parts; and

3 7. "Qualifying term" means a word, compound word, or phrase  
4 that would clearly disclose to a reasonable purchaser of meat  
5 products that a food product is not a meat product including cell-  
6 cultivated, cell cultured, fake, grown in a lab, imitation, insect,  
7 insect-based, insect protein, lab-created, lab-grown, meat-free,  
8 meatless, plant, plant-based, vegan, vegetable, vegetarian, veggie,  
9 or any comparable word or phrase.

10 B. No person shall falsely advertise or misbrand any food or  
11 distribute, offer for sale, or sell any misbranded food.

12 C. A food shall be deemed to be falsely advertised or  
13 misbranded if:

14 1. For any manufactured-protein food product that is labeled  
15 with an identifying meat term, such manufactured-protein food  
16 product is not labeled with a conspicuous and prominent qualifying  
17 term in close proximity to the identifying meat term; or

18 2. For any manufactured-protein food product that is labeled  
19 with an identifying meat term and offered for sale at a food  
20 establishment, such manufactured-protein food product is not labeled  
21 in a manner that is clearly and distinctly separate from any product  
22 that is made from tissue originating from any agricultural food  
23 animal.

1 D. A manufactured-protein food product is falsely advertised or  
2 misbranded if:

3 1. All labeling or advertising for such manufactured-protein  
4 food product that lists an identifying meat term does not include a  
5 conspicuous and prominent qualifying term in close proximity to the  
6 identifying meat term; or

7 2. For any manufactured-protein food product that is offered  
8 for sale at a food establishment, such manufactured-protein food  
9 product is not stored in a manner that:

10 a. keeps such product separate from tissue originating  
11 from agricultural food animals, and

12 b. uses distinctive shelf tags or other posted  
13 representations to identify and distinguish such  
14 manufactured-protein food product from tissue  
15 originating from agricultural food animals.

16 E. The Department of Agriculture, Food, and Forestry shall  
17 investigate all credible complaints that food products are falsely  
18 advertised or misbranded as meat products.

19 F. Any person who violates the provisions of this act shall,  
20 upon conviction, be guilty of a misdemeanor.

21 G. A manufacturer of food under Sections 1-1118, 1-1118.1, and  
22 1-1119 of Title 63 of the Oklahoma Statutes that violates this act  
23 shall be subject to all enforcement measures as provided by rule of  
24 the Department of Agriculture, Food, and Forestry.

1 H. The Department of Agriculture, Food, and Forestry may adopt  
2 rules as necessary to implement this section.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE  
5 April 14, 2025 - DO PASS  
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